

TAB 1



Board of Education Report

File #: Rep-351-23/24, **Version:** 1

Consideration of Street Lighting Maintenance Assessment for the Eastern Avenue Pedestrian Lighting District

June 25, 2024

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive or her designee to cast the Proposition 218 ballot for street lighting maintenance assessment for the Eastern Avenue Pedestrian Lighting District within the City of Los Angeles (City) and execute any other reasonable instruments on behalf of Los Angeles Unified in an amount not to exceed \$15,456.76 (not including annual Consumer Price Index (CPI) increases).

Background:

The street lighting maintenance assessment for the Eastern Avenue Pedestrian Lighting District is seeking support of a ballot to add 152 new pedestrian lights along Eastern Avenue in Los Angeles, of these, 20 streetlights would be installed along the perimeter of Farmdale Elementary School (7) and El Sereno Middle School (13), as identified in Exhibit A. The Eastern Avenue Pedestrian Lighting District will need to submit ballots to property owners to vote on the assessment and to install the additional streetlights. The Eastern Avenue Pedestrian Lighting District provides servicing, installation, maintenance, and operation of street lighting. The cost for services includes but are not limited to electricity, lamps, fixtures, poles, wires, repair crews and vehicles and other items necessary to operate streetlights in the City of Los Angeles. The additional lighting will further enhance safety measures and support safety passages.

Los Angeles Unified currently pays \$2,900.64 annually for the existing street lighting district in this area. If approved and implemented the annual amount for the special assessment projected by the Eastern Avenue Pedestrian Lighting District for Farmdale Elementary School and El Sereno Middle School would increase to \$15,456.76.

School	APN	Existing Number of Lights at School Perimeter	Proposed Number of New Lights at School Perimeter	Current Assessment	Proposed Annual Assessment
Farmdale Elementary School	5214-017-901	8	7	\$2,900.64	\$15,456.76
El Sereno Middle School		9	13		
Total:		17	20	\$2,900.64	\$15,456.76

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The proposed assessment is subject to annual increases based on the Eastern Avenue Pedestrian Lighting District budget. As opposed to Business Improvement Districts, no discount from the assessment is offered or proposed by the City of Los Angeles. Facilities staff will continue to contact the Los Angeles City Bureau of Street Lighting to attempt to secure a reduced rate.

The Eastern Avenue Pedestrian Lighting District is located in Region East, Board District 2 (Dr. Rocio Rivas).

Expected Outcomes:

Approval of the action will authorize the Chief Facilities Executive or her designee to execute the ballot in support of the proposed lighting assessment provided by the Eastern Avenue Pedestrian Lighting District and pay the annual assessment for the Eastern Avenue Pedestrian Lighting District. The increased lighting will help further enhance safe passages to and from school for students attending Farmdale Elementary School and El Sereno Middle School.

Board Options and Consequences:

A “yes” vote by the Board will authorize the Chief Facilities Executive or her designee to record a yes vote on the Proposition 218 ballot for the Eastern Avenue Pedestrian Lighting District.

A “no” vote may result in the Eastern Avenue Pedestrian Lighting District failing to obtain a majority affirmative vote of the property owners in the Eastern Avenue Pedestrian Lighting District. However, if the Eastern Avenue Pedestrian Lighting District does secure the required support, Los Angeles Unified would still be obligated to pay the cost associated with the special assessments.

Policy Implications:

Los Angeles Unified does not have a current policy with regard to lighting districts. The proposed action advances Los Angeles Unified’s 2022-2026 Strategic Plan Pillar 3 Engagement and Collaboration Leading for Impact by growing and leveraging partnerships with community-based organizations. Moreover, it supports the District’s Every School Safe: A Blueprint for Safety.

Budget Impact:

The projected annual amount for the assessment of Eastern Avenue Pedestrian Lighting District in 2025 would be increased from \$2,900.64 to \$15,456.76 and subject to increases based on the Eastern Avenue Pedestrian Lighting District budget annually thereafter. Annual assessment for the Eastern Avenue Pedestrian Lighting District will be provided by the General Fund, Program Code 15190. This is a new cost and additional funding will be necessary to support. The assessment is an ongoing annual cost and does not have a sunset date.

Student Impact:

Improve safety measures and support safe passages around the school perimeter and surrounding neighborhood.

Equity Impact:

A lighting district is a geographically defined area within the City, in which services, maintenance, and operations are paid for through a special assessment, which is charged to all members within the district in order to equitably distribute the benefits received and the costs incurred to provide the agreed-upon services, activities, and operations.

Issues and Analysis:

Article 13 D (Proposition 218) of the State Constitution requires that a parcel’s assessment may not exceed the reasonable cost for the proportional special benefit conferred on that parcel. Article 13 D provides that only

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special benefits are assessable, and the City must separate the general benefits from the special benefits. It also requires that publicly owned properties, which benefit from the improvements, be assessed.

Los Angeles Unified is not obligated to support the formation of the Eastern Avenue Pedestrian Lighting District. Regardless of Los Angeles Unified's support, if the Eastern Avenue Pedestrian Lighting District is approved, Los Angeles Unified will be required to pay its special assessment unless there has been a formal determination that it is exempt.

The City has limited funding to provide certain services, and the Eastern Avenue Pedestrian Lighting District is able to supplement services that may benefit the community. Supporting the Eastern Avenue Pedestrian Lighting District is voluntary by the Board, however Los Angeles Unified is obligated to pay the special assessment should the City Council vote to pass the Eastern Avenue Pedestrian Lighting District ballot presented.

Attachments:

Exhibit A - Area Map
Exhibit B - Aerial Map

Informatives:

None

Submitted:

06/04/24

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RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent, Business Services and Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

APPROVED BY:



KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

☒ Approved as to form.

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

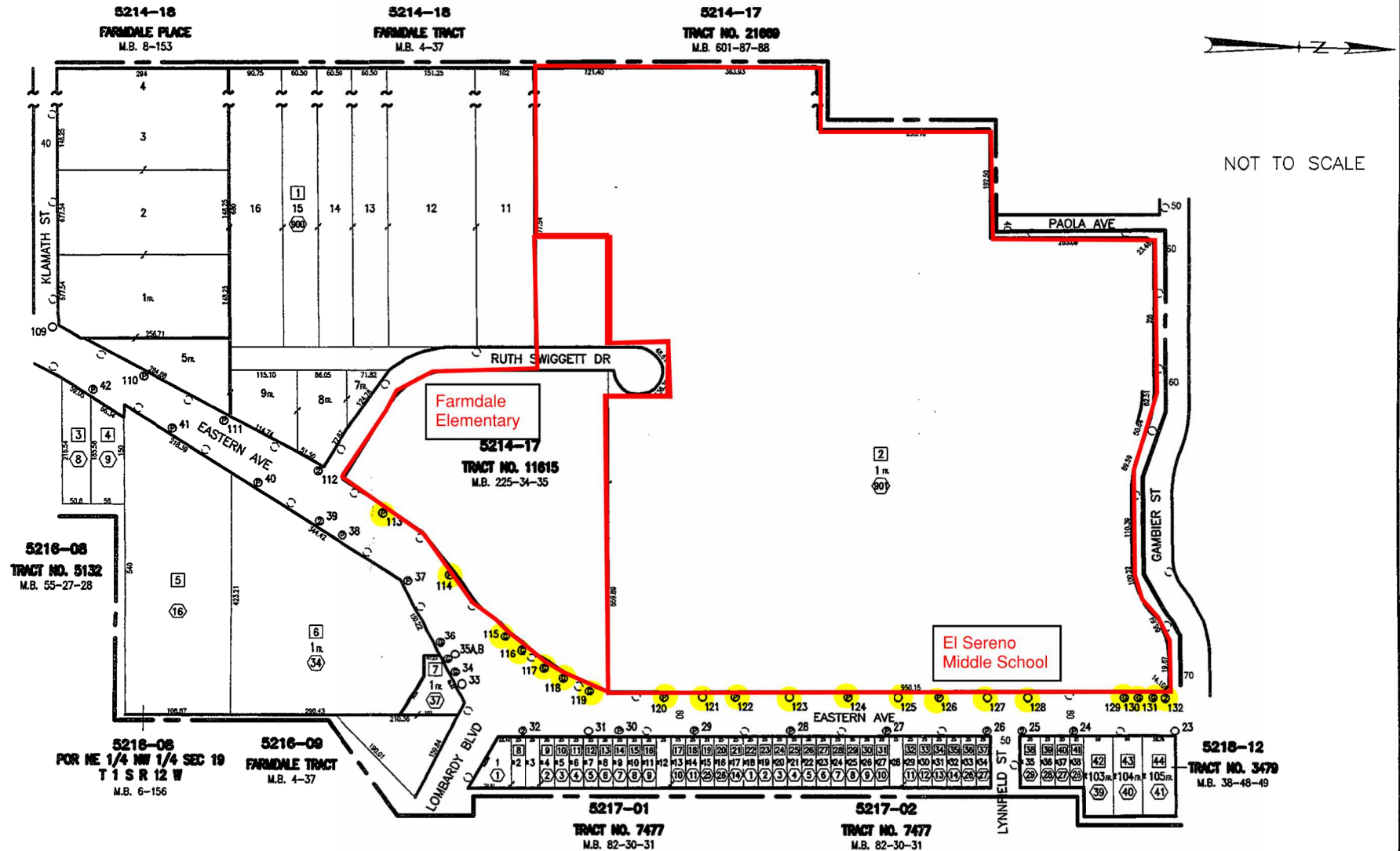
PRESENTED BY:



AARON BRIDGEWATER
Director of Facilities Planning and Development
Facilities Services Division

☒ Approved as to budget impact statement.

AREA MAP



EASTERN AVE. PEDESTRIAN LIGHTING L.D.

PREPARED BY BUREAU OF STREET LIGHTING

Post No. 1-152
 Council Dist. 14
 Election No. 5559
 Page No. 15857
 Date: 3-20-24

Exhibit B - BOE Rep-351-23/24
Aerial Map

